

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MICHAEL RUSSELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JONATHAN PEREZ
SHIELD #17154 OF THE 23RD PCT. AND POLICE
OFFICERS JOHN, JIM AND JOE DOE, TRUE IDENTITIES
UNKNOWN, SUED IN THEIR FITCITIOUS CAPACITY,
ALL INDIVUALLY AND IN THEIR CAPACITY AS
POLICE OFFICERS,

Defendants.
-----X

SUMMONS

INDEX NO:

Plaintiff designates New
York County as the Place
of trial. The basis of the
venue is that New York
County is the Place where the
cause of action arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a
copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 20, 2018



EMERSON & RUSSELL, LLP.
Royce Russell, Esq.
Attorneys for Plaintiff
499 Seventh Ave, 12N
New York, New York 10018
(212) 683-399

Defendant's address:

City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

Police Officer Jonathan Perez,
Shield #17154
c/o 23RD Precinct
162 East 102nd Street
New York, NY 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MICHAEL RUSSELL,

Plaintiff,

VERIFIED COMPLAINT
INDEX NO:

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER JONATHAN PEREZ
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OFFICERS JOHN, JIM AND JOE DOE TRUE IDENTITIES
UNKNOWN, SUED IN THEIR FICTITIOUS CAPACITY,
ALL INDIVIDUALLY AND IN THEIR CAPACITY
AS POLICE OFFICERS,

Defendants.
-----X

The plaintiff, Michael Russell, complaining of the defendants, by his attorneys, Emdin & Russell,
L.L.P., respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York
2. Upon information and belief that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.
3. Upon information and belief, at all times hereinafter mentioned, and on the 30th day of June, 2017 at approximately 10:50 p.m. police officers employed by the defendant City, including defendants Jonathan Perez, John, Jim, and Joe Doe were present and on duty at

including defendants Jonathan Perez, John, Jim, and Joe Doe were present and on duty at the vicinity of 1590 Park Avenue, Harlem New York, in the City of New York, New York County, and State of New York, hereinafter referred to as “the location”.

4. Police Officer Jonathan Perez, hereinafter referred to as “Perez” was employed by the City of New York, and/or “NYPD” and on the 30th day of June, 2017, assigned shield # 17154 and was assigned to 23rd Precinct.
5. Police Officer John, Jim and Joe Doe, hereinafter referred to as “John, Jim, Joe” was employed by the City of New York, and/or “NYPD” on the 30th day of June, 2017, and was assigned to 23rd Precinct.
6. Upon information and belief on the 30th day of June, 2017 Police Officers Perez, John, Jim, and Joe Doe worked together and were employed by the Defendant “City”. Upon information and belief John, Jim, or Joe served as Police Officer Perez’s partner.
7. That collectively Perez, John, Jim and Joe are hereinafter referred to as “the officers”.
8. That the plaintiff at all relevant times hereunder was a resident of the City, State, and County of Harlem-New York, residing at 1734 Madison Avenue New York, N.Y. 10029.
9. That at all relevant times hereunder, “the officers” were acting within their scope of employment as police officers employed by the “City”.
10. That “the officers” on or prior to June 30, 2017 “the officers” were each individually hired, screened, tested, interviewed, trained, investigated, monitored and/or supervised by the “City” including the agencies thereunder, including the “NYPD” and all supervisory officers of the named defendants, i.e “the officers”.
11. On June 30, 2017 at approximately 10:50 p.m., and at all relevant times hereunder, “the

officers” individually and/or collectively, were acting pursuant, and under the rules and regulations of the New York City Patrol Guidelines.

12. That the plaintiff filed and served a timely Notice of Claim on “the City”.
13. The City acknowledged receipt of the Claim, and the Plaintiff’s 50h hearing was held on December 21, 2017.
14. The Plaintiff’s criminal case was dismissed upon the motion of the District Attorney Office.
15. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the defendant, City of New York, and the said defendant has neglected or refused to make any adjustment or payment thereof.
16. That this action is commenced within one year and 90 days after the cause of action arose.
17. That on June 30, 2017, at approximately 10:50 p.m., the plaintiff was lawfully walking from the store located in the vicinity of 1590 Park Avenue, Harlem New York, referred to as the “location”, when he was stopped by the herein named defendants “Officers”.
18. That on June 30, 2017 at approximately 10:50 p.m. the “Officers” were present at the location and were acting within the scope of their employment and under the direction of the “City”, and “NYPD” as its’ agents, servants and/or employee(s).
19. That at the above referenced date, time and “location” the “Officers” exited their vehicle dressed in plain clothes without displaying shields but with weapons drawn at the Plaintiff and ordered Plaintiff to stop.
20. Plaintiff complied with the “Officers” orders and asked “What’s the problem, Officers”? The Defendant officers then ordered the Plaintiff to provide identification. Once again,

Plaintiff complied and provided his identification.

21. One of the "Officers" said "This is the mother-fucker"! Defendant Officer John Doe, wearing a black T-shirt with the words "DOPE" displayed on the front, attempted to grab the Plaintiff's arm for which Plaintiff pulled back.
22. Plaintiff was immediately placed in a bear hug, picked up in the air and body slammed face first onto the concrete pavement.
23. Plaintiff was then beaten about the body, back and face as his mother observed.
24. Plaintiff's mother repeatedly yelled "He has scoliosis" nonetheless the "Officers" continued battering and assaulting the Plaintiff by striking him in the back and body.
25. Plaintiff was held on the ground handcuffed for 20 minutes before being escorted to his feet.
26. Plaintiff was forcibly removed to a police vehicle whereupon the "Officers" yelled "Stop resisting" while their misconduct was being recorded. Plaintiff was never resisting but his head was nonetheless, slammed onto the police vehicle.
27. Defendant "Officers" hindered the recording of their misconduct by shinning their flashlights into the lens of the cell phone camera.
28. While being escorted to the precinct, Plaintiff was assaulted by an Asian officer, (Jim Doe), punching him in his chest while seated in the back of the police vehicle.
29. Defendant Officer Jim Doe also called the Plaintiff a "Nigger" during the assault.
30. Upon arriving at the 23rd Precinct, Plaintiff remained handcuffed and his sneakers were falsely vouchered as arrest evidence. Plaintiff case was dismissed but his sneakers were never returned and never vouchered.

31. "Officers" removed Plaintiff's sneakers and he was then shackled.
32. Despite Plaintiff's consistent and continuous complaint of pain he was experiencing while detained. Plaintiff was denied medical treatment. .
33. As a result of the Defendant "Officers" misconduct, Plaintiff suffered bruises and lacerations to his face, elbow, knee chest and back.
34. That on the date and at that location, "the officers" did not have an arrest warrant or probable cause to believe a crime had been committed, but nonetheless arrested the Plaintiff.
35. The plaintiff had committed no crime.
36. Upon information and belief, Defendant Perez is listed as the arresting officer.
37. According to Criminal Accusatory instrument, Perez drafted said reports.
38. Upon information and belief, "Perez, John, Jim and Joe, knew or had reason to know that there was no probable cause to arrest the Plaintiff.
39. Upon information and belief, there were witnesses present at the scene of the arrest, however, they were warned against videotaping the incident and their information was not recorded by the defendants.
40. The Plaintiff remained in handcuffs and in police custody until he was arraigned at New York County Criminal Court.
41. Upon information and belief Plaintiff was released on his own recognizance at Arraignment. He was falsely charged with committing the crimes of Assault and Resisting Arrest.
42. Perez filed police reports in connection with the Plaintiff's arrest, for the purpose of

prosecuting the Plaintiff.

43. The Plaintiff's case was dismissed on August 22, 2017, his first Court appearance pursuant to the District Attorney's Office motion.
44. The Plaintiff sustained physical and emotional pain and trauma as a result of this incident.
45. This action falls within one of the exceptions of the CPLR.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF FOR
FALSE IMPRISONMENT AGAINST THE DEFENDANTS:**

46. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully and at length set forth herein.
47. Beginning on or about the 30th day of June, 2017, at the approximate hour of 10:50 p.m. through the plaintiff's arraignment on or about June 30, 2017 County of New York, State of New York, the defendants, by and through their agents, servants and/or employees intentionally handcuffed and imprisoned the Plaintiff, without any just cause or grounds therefore, and held him against his will under full force of arms until he was released on his own recognizance.
48. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the plaintiff was guilty of such crimes, or that the defendants had just cause to imprison the plaintiff.
49. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees and was

forced to submit to the aforesaid arrest, imprisonment and confinement entirely against his will.

50. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; in that the Plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.
51. That by reason of the aforesaid false imprisonment and detention of the plaintiff, his freedom was restricted, he was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.
52. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST THE DEFENDANTS:**

53. The Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs marked "1" through "52" with the same force and effect as if more fully and at length set forth herein.
54. That on the 30th day of June, 2017, at the approximate hour of 10:50 p.m. at the vicinity of 1590 Park Avenue, the Plaintiff was arrested by the above named defendants.
55. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the Plaintiff was guilty of such crimes, or that the defendants had just cause to arrest the Plaintiff.
56. The Plaintiff was wholly innocent of any crime and did not contribute in any way or

manner to his arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest, imprisonment and confinement entirely against his will.

57. That the defendants, their agents, servants and/or employees, as set forth above, intended to arrest and confine the Plaintiff; the Plaintiff was conscious of the arrest and confinement; Plaintiff did not consent to the arrest; and the arrest and his subsequent confinement was not otherwise privileged.
58. That by reason of the aforesaid false arrest and detention of the Plaintiff, he was imprisoned and subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.
59. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF THE PLAINTIFF FOR BATTERY AND ASSAULT
AGAINST THE DEFENDANTS:**

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and effect as if fully set forth herein.
61. That on the 30th day of June, 2017, the Plaintiff was battered and assaulted at the approximate hour of 10:50 p.m. at "the location".
62. The defendant, through its agents, servants and/or employees, while acting within the scope of their employment, without cause or provocation and with great force and violence, grabbed, struck, hit, punched, kneed, threw, beat, handcuffed, arrested and

fingerprinted the Plaintiff.

63. "The officers" had absolutely no reason or just cause to batter and assault the plaintiff.

Moreover, said conduct was without the Plaintiff's consent or permission, and was far in excess of any force necessary to effect plaintiff's arrest, and/or control his person.

64. That the defendant, their agents, servants and/or employees, acting as agents on behalf of the defendant "City", within the scope of their employment, intentionally, willfully, and/or maliciously battered and assaulted the plaintiff, in that they had the real ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the plaintiff. That said acts caused apprehension of such offensive contact to the plaintiff, when officers in a hostile and/or offensive manner touched and beat the plaintiff without his consent and with the intent to cause harmful and/or offensive bodily contact to the plaintiff and caused such batter in and about his body and limbs.

65. That the City is liable for the actions of its employees, including the above named "officers" for conduct committed within the scope of their employment.

66. That by reason of the aforesaid intentional battered and assaulted, the Plaintiff suffered and still continues to suffer from serious physical and psychological injuries to his body and mind, and was rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that he was otherwise damaged.

67. That by reason of the aforesaid battery and assault the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF THE PLAINTIFF AGAINST DEFENDANT
CITY FOR NEGLIGENCE**

68. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs marked “1” through “68” with the same force and effect as if more fully and at length set forth herein.
69. That the defendant “City” was negligent, careless and reckless in hiring, retaining, supervising and promoting as and for its employees, “the officers” herein, in that said officers, as employees of the City of New York, were not qualified to be hired or retained or promoted as police officers, lacked the experience, deportment, skill, training and ability to be employed by the defendant “City”; to be retained by the defendant, “City”; and to be utilized in the manner that each was employed on the day in question.
70. That the defendant, “City”, failed to exercise due care and caution in its hiring, retaining and/or promoting practices; in that the defendant “City” failed to adequately test, analyze test results, and/or investigate said officers’ backgrounds; they failed to adequately screen said officers; failed to adequately monitor officers; failed to properly discipline officers who violate Patrol Guidelines; failed to properly train and retrain officers; and the defendant “City”, its’ agents, servants and/or employees, were otherwise careless, negligent and reckless.
71. That the aforesaid occurrence, to wit: the battery and assault, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence or deliberate indifference of the defendant “City”, its’ agents, servants and/or employees without any

negligence on the part of the plaintiff contributing thereto.

72. That by reason of the aforesaid, the Plaintiff was injured in mind and body, and he was arrested, imprisoned, prosecuted and rendered sick, sore, and injured and so remains, and the plaintiff has been otherwise damaged.

73. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK**

74. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "73" with the same force and effect as if more fully and at length set forth herein.

75. That on or about the 30th day of June, 2017, at or about approximately 10:50 a.m. at "the location", the defendant, "City," by and through its agents, servants, and/or employees, including "the officers" were present as part of their regular and official employment as police officers for the defendant, "City" and were acting under the color of law.

76. That as Plaintiff was lawfully and properly at "the location" the Plaintiff was stopped, questioned and seized solely on the basis of his age and/or race.

77. That said illegal stop and seizure was a part of the City's custom practice and/or practice of racial profiling, and/or meeting arrest, and/or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the defendant "City" under their Stop, Question and Frisk policy/ program, or their Broken Windows policing strategy.

78. That under the “Stop and Frisk/Broken Windows” program the city permitted, condoned, or acted with deliberate indifference to the racial disparity of its application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for “stop and frisks”, that officers do not always fill out Stop and Frisk Reports and are not disciplined when they fail to do so, that stop and frisks are conducted without probable cause or just reason, and that the program has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.
79. That the City has failed to discipline, train or retrain offending officers who engaged in stops and frisks without any justifiable reasons and officers who fail to fill out required Stop and Frisk Reports. In the instant matter, Plaintiff was not provided with a Stop and Frisk report.
80. That the City failed to adequately investigate and/or to discipline officers who use excessive force; who fail to report misconduct of fellow officers; who destroy evidence; and who maliciously prosecute innocent citizens.
81. The Plaintiff’s injuries including the violation of his constitutional rights, the deprivation of his freedom, physical and emotional injuries and trauma, are the direct proximate result of the City’s policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-up, witness intimidation, malicious prosecution, illegal stop, question, and frisk, strip searches, 4th Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassigning offending officers. The practice is

widespread and persuasive throughout each of the five boroughs.

82. On June 30, 2017 the plaintiff was battered, assaulted and falsely arrested when he objected to the officers' conduct. Witness(es) were threatened and prevented from recording the police misconduct.
83. The City knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or the destruction of exculpatory evidence including video cameras, camera phones and other recording devices; threatening to arrest witnesses to police misconduct; and engaging in police cover-ups.
84. That the acts of police officers who violate the civil and constitutional rights of the City of New York routinely go unreported, undisciplined and their acts are condoned by other officers, including their supervisors. Upon information and belief, Officer Perez, John, Jim and Joe Doe on June 30, 2017 were present at the "location," and participated in the conduct alleged herein. No "officers" stopped, reported, or intervened in their misconduct.
85. The City's and/or NYPD tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to "come down hard on quality of life infractions, leads to a systemic practice and policy wherein officers seem fairly tolerant, both outwardly and inwardly of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops", but rather as outcasts and snitches and are isolated, ostracized and often transferred, thereby perpetuating the illegal conduct of the officers.

86. Some instances where officers were treated as outcasts for reporting misconduct and/or an arrest/summons quota system are as follows:

- a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police Officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin, in David Floyd et al v The City of New York, 08 civ 1034.
- b. Justice Sheindlin cited the deposition of Police Officer Adhyl Polanco of the 41st Precinct, stating that commanding officers set specific quotas for arrests and summons and for stop and frisks (UF-250's), and threatened to reduce overtime for officers who failed to perform well and to re-assign those who fail to meet quotas to less desirable posts.
- c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and a Chief of Transportation all can be heard encouraging/demanding increased stops, summons, detentions and/or arrests.
- d. Police Officer Craig Matthews of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system, and a systematic retaliation and harassment to those who did not comply.
- e. Recently, retired Detective James Griffin, filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption, face harassment and a hostile work environment, and that this conduct was tolerated by supervisors within the NYPD.

87. Upon information and belief, it is the custom, practice and policy of the "NYPD", or their

deliberate indifference to evidence thereof, to cover-up illegal arrests and excessive use of force, with false charges of assaulting a police officer, resisting arrest, disorderly conduct and/or obstruction of governmental administration.

88. Some instances of cover up of excessive use of force, which result in serious physical injuries, by charging relative minor crimes which include resisting arrest, obstruction of governmental administration or attempted assault on a police officer.
89. The "City" and/or NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens, or using unnecessary or excessive force, or immediately and/or threatening witnesses without said violations of law.
90. That said customs, policies and/or practices, or the deliberate indifference thereto was a direct proximate cause of the illegal seizure of the plaintiff, the excessive use of force on the plaintiff, and the false arrest and malicious prosecution of the plaintiff. The City's policies, customs, and/or practices deprived the plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.
91. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States of America, violated plaintiff's right to be secure in his person, and that the defendants used excessive, unnecessary, and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.
92. That plaintiff was struck, battered, assaulted, handcuffed, arrested and beaten with such force that he needed to be taken to the hospital for medical treatment. Said acts constituted

cruel and inhuman treatment/punishment.

93. The defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures,; excessive or arbitrary use of force; illegal use of police equipment; destruction of evidence; intimidation of witnesses; illegal arrests; failing to follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to take police reports of illegal conduct; and failing to properly supervise, train, investigate or discipline officers. Any and/or all of the above contributed to plaintiff's false arrest, and prosecution, and injuries.
94. The Defendants actions on June 30, 2017 were performed under the color of the policies, statue, ordinances, rules and regulations of the City of New York.
95. That the plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.
96. That by reason of the aforesaid, the Plaintiff was injured in mind and body, and he was damaged.
97. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS, THE PLAINTIFF ALLEGES AGAINST
THE DEFENDANTS:**

98. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "97" with the same force and effect as if more fully and at length set forth herein.
99. That 'the officers', at the aforementioned date, time and location, acting within the scope of their employment, acted in a manner that exceeded all reasonable bounds of decency with an intent to inflict emotional distress upon the plaintiff.
100. That the plaintiff did sustain emotional distress as a result of the defendant officers' conduct.
101. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A SEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY "THE OFFICERS", IN THEIR INDIVIDUAL
CAPACITIES AND AS AGENTS OF
THE CITY OF NEW YORK**

102. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "101" with the same force and effect as if more fully and at length set forth herein.
103. That at all times hereinafter mentioned, the defendant "officers" were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

104. That at all times, the defendant officers were acting pursuant to orders and directives from defendant "City".
105. That during all times hereinafter mentioned, "the officers" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the "City" and/or New York City Police Department and that "the officers" were acting under the color and pretense of law, when they, individually and collectively, engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
106. That the unlawful and illegal conduct of the defendants deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:
- a) The right of Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and
 - b) The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States; and
 - c) The right not to be subjected to cruel and unusual punishment, and
 - d) The right to freedom of speech; and
 - e) The right to Due Process of Law.

107. That by reason of the aforesaid violations, use of force, use of arbitrary, and excessive force, seizure of Plaintiff's person, destruction of evidence, falsification of evidence and/or reports, false arrest and false imprisonment, battery and assault, malicious prosecution, engaging in a cover-up, and threatening the plaintiff, the defendant "officers" violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto. The City defendant officers, and the City under the doctrine of respondent superior, violated 42 U.S.C. §1983.
108. That as a direct proximate result of the defendants' actions, the Plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
109. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, by the actions of "the officers", individually and collectively.
110. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

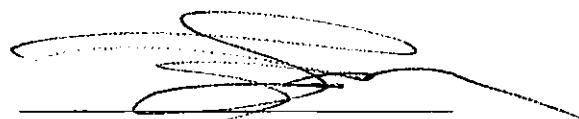
**AS AND FOR AN EIGHT CAUSE OF ACTION ON
BEHALF OF THE PLANITIFF FOR MALICIOS PROSECUTION**

111. Plaintiff reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "110" with the same force and effect as if more fully and at length set forth

112. That the defendants, their agents, servants and/or employees maliciously and knowingly filed false criminal charges against the plaintiff.
113. That the plaintiff was and is innocent of all charges and had committed no crime.
114. That as a result of the false charges, and false police reports, the plaintiff was required to expend time to defend himself in court, and was otherwise damaged.
115. That on May 27, 2018 all criminal charges were dismissed against the plaintiff in the criminal court by Judge Gerstein.
116. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

WHEREFORE, the Plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, punitive damages, attorney's fees and such other relief as to the court seems just and proper on the first through eighth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York
July 20, 2018

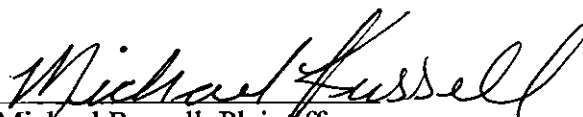


Royce Russell, Esq.
Emdin & Russell, L.L.P.
Attorneys for Plaintiff
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(212) 683-3995

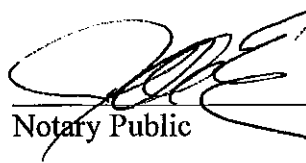
VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Michael Russell, being duly sworn depose and say: I am the Plaintiff in the within the action, I have read the foregoing Summons and Complaint and know the contents hereof; the same is true based upon my information, knowledge and belief.


Michael Russell, Plaintiff

Sworn to before me this
20 day of July, 2018


Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5088790
Qualified in Westchester County
Commission Expires November 12, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MICHAEL RUSSELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, POLICE OFFICER JONATHAN PEREZ, SHIELD #17154 OF THE 23RD PCT, AND POLICE OFFICERS JOHN DOE, JIM DOE, AND JOE DOE, ALL IN THEIR CAPACITY AS POLICE OFFICERS AND INDIVIDUALLY,

Defendants.

SUMMONS AND COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Claimant
499 Seventh Avenue, Floor 12N
New York, NY 10018
(212) 683-3995

To: City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

Police Officer JONATHAN PEREZ,
Shield #17154
c/o 23RD Precinct
162 East 102nd Street
New York, NY 10029

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: July 20, 2018

Signature

Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on